

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 419

By: Daniels and Bullard of the
Senate

and

Lepak of the House

11 COMMITTEE SUBSTITUTE

12 An Act relating to the Attorney General; amending 74
13 O.S. 2021, Section 18c, as amended by Section 5,
14 Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section
15 18c), which relates to employment of attorneys;
16 authorizing certain entities to employ or appoint
17 attorneys; updating statutory language; updating
18 statutory references; and providing an effective
19 date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 74 O.S. 2021, Section 18c, as
20 amended by Section 5, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025,
21 Section 18c), is amended to read as follows:

22 Section 18c. A. 1. Except as otherwise provided by this
23 subsection, no state officer, board or commission shall have
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1 authority to employ or appoint attorneys to advise or represent ~~said~~
2 the officer, board or commission in any matter.

3 2. The provisions of this subsection shall not apply to the
4 Corporation Commission, the Council on Law Enforcement Education and
5 Training, the Commission on Consumer Credit ~~Commission~~, the Board of
6 Managers of the State Insurance Fund, the Oklahoma Tax Commission,
7 the State Treasurer, the Commissioners of the Land Office, the
8 Oklahoma Public Welfare Commission also known as the Commission for
9 Human Services, the State Board of Corrections, the Oklahoma Health
10 Care Authority, the Department of Public Safety, the Oklahoma State
11 Bureau of Narcotics and Dangerous Drugs Control, the Alcoholic
12 Beverage Laws Enforcement Commission, the Transportation Commission,
13 the Oklahoma Energy Resources Board, ~~the Oklahoma Merit Protection~~
14 ~~Commission~~, the Office of Management and Enterprise Services, the
15 Oklahoma Water Resources Board, the Department of Labor, the
16 Oklahoma Department of Agriculture, Food, and Forestry, the
17 Department of Wildlife Conservation, the Oklahoma Wildlife
18 Conservation Commission, the Northeast Oklahoma Public Facilities
19 Authority, the Oklahoma Firefighters Pension and Retirement System,
20 the Oklahoma Public Employees Retirement System, the Uniform
21 Retirement System for Justices and Judges, the Oklahoma Conservation
22 Commission, the Office of Juvenile Affairs, the State Board of
23 Pharmacy and the Oklahoma Department of Veterans Affairs.

1 3. The provisions of paragraph 2 of this subsection shall not
2 be construed to authorize the Office of Juvenile Affairs to employ
3 any attorneys that are not specifically authorized by law.

4 4. All the legal duties of such officer, board or commission
5 shall devolve upon and are hereby vested in the Attorney General;
6 provided that:

7 a. the Governor shall have authority to employ special
8 counsel to protect the rights or interest of the state
9 as provided in Section 6 of this title, and

10 b. liquidation agents of banks shall have the authority
11 to employ local counsel, with the consent of the Bank
12 Commissioner and the Attorney General and the approval
13 of the district court.

14 B. At the request of any state officer, board or commission,
15 except the Corporation Commission, ~~the~~ Oklahoma Tax Commission and
16 the Commissioners of the Land Office, the Grand River Dam Authority,
17 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control,
18 the Alcoholic Beverage Laws Enforcement Commission, the Oklahoma
19 Firefighters Pension and Retirement System, the Oklahoma Public
20 Employees Retirement System, the Uniform Retirement System for
21 Justices and Judges and the Interstate Oil and Gas Compact
22 Commission, the Attorney General shall defend any action in which
23 they may be sued in their official capacity. At the request of any
24 such state officer, board or commission, the Attorney General shall

1 have authority to institute suits in the name of the State of
2 Oklahoma on their relation, if after investigation the Attorney
3 General is convinced there is sufficient legal merit to justify the
4 action.

5 C. Any officer, board or commission which has the authority to
6 employ or appoint attorneys may request that the Attorney General
7 defend any action arising pursuant to the provisions of The
8 Governmental Tort Claims Act.

9 ~~C.~~ D. Nothing in this section shall be construed to repeal or
10 affect the provisions of the statutes of this state pertaining to
11 attorneys and legal advisors of the several commissions and
12 departments of state specified in subsection B of this section, and
13 all acts and parts of acts pertaining thereto shall be and remain in
14 full force and effect.

15 SECTION 2. This act shall become effective November 1, 2026.

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17 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 04/20/2026 - DO PASS,
18 As Amended.

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